PRECIOUS CHIKUVADZE (NEE BAFANTI) versus
MACDONALD CHIKUVADZE

HIGH COURT OF ZIMBABWE
**PHILLIPS J**
HARARE; 10 February & 13 August 2026

***Summons Commencing Action***

*T. Nare,* for the Plaintiff
MacDonald Chikuvadze in person

**PHILLIPS J**:

**Factual Background**

The plaintiff and the defendant are married in terms of the Marriages Act [*Chapter* 5:11] now the Marriages Act [*Chapter 5:17*] on 16 December 2016 and their marriage still subsists. There are three children born out of the marriage namely; Asiel Michael Chikuvadze (born on 10 December 2009), Michaela Eunice Chikuvadze (born 9 February 2013), Mikyle Mukudzeishe Chikuvadze (born 17 May 2020).

**Relief Sought**

1. A decree of divorce.
2. An order for custody and access of the minor children in terms of paragraph 7.
3. An order for maintenance of the minor children in terms of paragraph 8.
4. An order awarding the immovable properties to each party in terms of paragraph 10.
5. An order that each party bears its own costs.

**Plaintiff's case**

The plaintiff told the court that she has been married to the defendant since 2008 and they have three children together. She gave evidence that she stopped living with defendant in June 2020. She averred that the defendant used to be verbally abusive all the time especially when he was drunk and she would be beaten. She confirmed to the court that the marriage has irretrievably broken down and wishes for the court to grant her an order for divorce.

The plaintiff informed the court that she has been taking care of the expenses of the children and the defendant has never proposed a plan to assist with the day to day of the children. She also told the court that if the defendant is given custody, it would greatly affect the children, she has no idea where the defendant stays, she does not think that defendant has any capacity to look after the children on a day to day as well as assisting with their homework. However, the plaintiff indicated that she is willing to let the defendant have access (every two weeks on school holidays) to his children with someone overseeing the children because the plaintiff told the court that the defendant spends most of his time drunk; further access for the defendant to communicate with the children over the phone, he will have to buy them their own phones and network lines. The plaintiff averred that she has been taking care of the children's fees as follows: US$560 for Essel Chikuvadze, US$765 for Michael Chikuvadze, US$120 for Mikyle Chikuvadze, the first two children are at boarding schools and at the beginning of every term their expenses amounting to US$2 000. She also told the court that she pays US$300 monthly rentals, US$100 for groceries and for medical aid for the children which the plaintiff pays for.

The plaintiff informed the court that her monthly income is US$200 per month which does not cover much of the expenses, but her brothers assist her as well as her side business. She averred that the defendant has not been assisting in meeting the expenses, although she has been the one providing for the children it is also in the best interest of the children that he also has to provide something as a father, she proposed that the defendant pay half of the children's school fees and US$50 maintenance per child per month. She also told the court that she is not sure if the defendant is employed although she was aware that the defendant used to be employed by Zimbabwe Human Rights Commission but heard that the defendant is now running a school in the rural area.

**Defendant's case**

The defendant told the court that the plaintiff wants to be with the children at all times, yet her line of work requires her to move to different places, at any given time. He averred that the major cause of their divorce is the nature of the plaintiff's work, she was moved to Gweru, and he had proposed that she leave the children with him since they were learning at Halingbury School in Harare. He told the court that, the plaintiff denied the proposed arrangement and his concerns where as to who would be staying with the children and, since it was during the time that COVID was prevailing, when Covid ends where were the children going to go to school.

The defendant averred that the parties then came to an agreement that the plaintiff would stay with the children wherever she was going to be and that whoever has the children pays for the food so one would not have to budgeted twice. He averred that because the plaintiff was with the children she had to provide for food. The defendant submitted that he had agreed that the children should not be changed from where they were going to school as he did not want to disturb them. He told the court that the problem started when the plaintiff came back home to Goodhope but the children had been left at the plaintiff's mother's house in Kwekwe. The defendant's point of contention is that the plaintiff abandoned their last child for 4 years living in Kwekwe with his grandmother and she denied him access, as such he wants custody of the young child Mikyle Mukudzeishe Chikuvadze. He further averred that he was surprised that the child is now staying with the plaintiff in Avondale, the plaintiff's relocation of the youngest child from Kwekwe to Harare in January 2026 is a tactical move to undermine the defendant's case, now that he intends to have custody of the child. He also mentioned that the plaintiff will take back the younger child to his grandmother to take care of him, which is why he wants custody of that minor child. In terms of access, he told the court that the plaintiff denied him access and that he had bought the children's calling lines and phones and each time he tried to call the children, the plaintiff would block him. His position is that the plaintiff is being unfair by requesting to have a third party when it comes to him accessing his children, yet they are both equal parents. He also averred that he has attempted to go to the school and upon arrival he would be told that the children's fees had already been paid. The defendant informed the court that he would only be

able to pay one third of the school fees at a government school and pay US$30 per month for maintenance for the two children further he prayed that he have custody of the youngest child.

The defendant averred that he has been married to the plaintiff for 12 years, and that when Covid ended, he went to his mother in law's house, to find out why was the plaintiff not coming home, that is when he was told by the plaintiff that she was no longer interested, stating that he was verbally and physically abusive to her, which was news to the defendant. The defendant admitted that he does drink beer but he is not a drunkard, and that he has no criminal record. He informed the court that he resigned from employment in 2023 from the government without disciplinary issues in order to established his own business and is now self employed as a farmer, that he has established a school as a Non-Profit Organisation - Charity work. He averred that in a month he makes roughly US$100; he has guaranteed food and an allowance of $50 from his school. The defendant further told the court that it is in the best interests of the children to move from the private school to government schools.

**Issues for determination**

1. Whether or not it is in the best interest of the minor children that custody be awarded to the Plaintiff or Defendant
2. Who must pay maintenance for the minor children and how much must be paid.

**The Law**

The position of the law is that every court that sits to determine any issue relating to children, the court is guided by the common principle that the best interests of the child should be the determining factor. This principle is stated in section 81 of the Constitution of Zimbabwe Act, 2013 which provides as follows:

> " (2) A child's best interests are paramount in every matter concerning the child.
>
> (3) Children are entitled to adequate protection by the courts, in particular by the High Court as their upper guardian."

As stated in *Mukunda* v *Chigumadzi* HC 7048/15 and in *Machika* v *Makoni* HH 271/23, the feelings and protestations of the parents of a child or their unhealed egos cannot detain a

court from effecting and executing the mandate of ensuring that the best interests of the child takes paramount consideration in determining the issue at hand.

As regards the factors that a court should take into account in determining the meaning of "*best interests*" an almost exhaustive list is given in *Mcall* v *Mcall* 1994 (3) SA 201. They are listed as these:

> "(a) the love, affection and other emotional ties which exist between parent and child and the parent's compatibility with the child;
> (b) the capabilities, character and temperament of the parent and the impact thereof on the child's needs and desires;
> (c) the ability of the parent to communicate with the child and the parents' insight into, understanding of, and sensitivity of the child's feelings;
> (d) the capacity and disposition of the parent to give the child the guidance which he requires;
> (e) the ability of the parent to provide for the basic physical needs of the child, the so called 'creature comforts' such as food, clothing, housing and the other material needs – generally speaking the provision of economic security;
> (f) The ability of the parent to provide for the educational wellbeing and security of the child, both religious and secular;
> (g) the ability of the parent to provide for the child's emotional, psychological, cultural and environmental development;
> (h) The mental and physical health and moral fitness of the parent;
> (i) the stability or otherwise of the child's existing, environment, having regard to the desirability of maintaining the status quo;
> (j) the desirability or otherwise of keeping siblings together;
> (k) the child's preference, if the court is satisfied that in the particular circumstances the child's preference should be taken into consideration;
> (l) the desirability or otherwise of applying the doctrine of same sex matching;
> (m) Any other factor which is relevant to the particular case with which the court is concerned."

In *Bottger* v *Bottger* HC-H 405-82, at p 7, it was held as follows:

> "The object of access is to nurture the affection and companionship between non-custodian parent and child, and while on the one hand it should not be of such frequency as to trespass on the control and direction of the child's daily life that is vested in the custodian parent, on the other it should not be so confined as to stultify the continuing link between child and non-custodian parent."

Similarly, in *Kumirai* v *Kumirai* HH 17/06 the subject of access was extensively covered, wherein the court held that:

> "It is trite that access, in the absence of good reason, is not to be confined to such an extent that it stultifies the nurturing of a meaningful relationship between the child and the non-custodian parent."

Further, the benefits of nurturing such a relationship were set out in *W v W* 1981 ZLR 243 wherein it was stated as follows:

> "The natural affinity and emotional bond and attachment between parent and child are generally irreplaceable and an accepted fact of life. Such an association benefits and promotes a child's emotional security and feelings, normality, whilst the award of a child's custody to a third-party place him in a distinctly unusual or abnormal category. The custody of a child should vest in one parent whilst the non-custodial parent enjoys full access rights so as to have a bond with their child."

In *Kamuko* v *Mapiro & Another* 2014 (2) ZLR 677(H) the court held that a party who is legally liable to maintain a minor child is expected to contribute to whatever maintenance according to his means. The court is enjoined to make a proper assessment and come up with a reasonable figure within the means of the responsible person the fact that the income itself is low not being a bar to an order being made.

**Application of the Law to the Facts**

The adoption of the concept of the best interests of the child as the paramount consideration in all matters concerning the access, or custody of the minor children is enshrined and the Constitution unequivocally empowers the High Court to decide what is in the best interests of a child irrespective of the child's parents' views. I must agree with comments by UCHENA J (as he then was) in the *Mukundu* case supra that a custody hearing is "*not a contest*" between the parties' respective rights over the minor children, and as such the court will consider the parent's suitability in advancing the best interest of the children. In *casu*, it is common cause that the plaintiff has been taking care of the children all this time with no assistance from the defendant. The court is of the opinion that the plaintiff has satisfied and shown economic security for the children, which is one of the factors listed on the *McCall* case (supra) that is "*the ability of the parent to provide for the basic physical needs of the child*", the so called "*creature comforts*" such as food, clothing, housing and other material needs. The court will consider the ability of a parent to give love and care to the child and ensure that the parent is a suitable person is to be entrusted with the responsibility of custody. In the circumstances, it seems that it is not in the

best interest of the youngest child to be shoved from one place to the other and from one school to another. The reasons that have been proffered by the defendant are not convincing for the court to allow the child who has been enrolled at a private school and be placed at a school in the rural areas, and having the father paying the school in kind. The court is not interested in what a party promises to do in the future rather the court is interested with what a party has done and is doing for his children. See *W* v *X HB 5 of 2019*. The court has taken into consideration the child's age, the fact that he still requires motherly love and that the mother who has always had an interest in the child's affairs is now wholly staying with the child. There is no good cause shown by the defendant to deprive the plaintiff custody of the younger child. I am of the view that, the issue of custody would be best served if the children remain in the custody of their mother given that she has always had custody and providing all their needs.

With regards to maintenance, it is trite that in terms of the Maintenance Act [*Chapter 5:09*] the parents of a child are primarily and jointly responsible for the maintenance of their children until they attain the age of majority or becomes self-supporting. In balancing the needs of the children and a parental duty to take care of his own the court has to look at the means and ability of the persons to pay. Both parties did not furnish the court with evidentiary information regarding their earnings or incomes to enable the court to make a proper determination, each party gave oral evidence as to what one earns. The money which the plaintiff has claimed for maintenance of the children is justified that is US$50 per child every month and half of the school fees for every child. However, the court find that is beyond the defendant's means given that he has not been earning much from what he has submitted to the court, as such l find that US$40-00 per month per child is reasonable given the circumstances of the matter. And in relation to the children's school fees, the defendant has an issue with financing private schools and so in that regard, he will contribute a third of the school fees for each child.

In respect of access, the plaintiff did not properly provide the court with sufficient evidence which would persuade the court to deny a natural parent of unsupervised access to his children and the defendant is no stranger to the children. It is my finding that the defendant poses no danger to the life, health or morals of the children. The plaintiff has expressed her concerns with letting her children to their father's place, that is the defendant is a drunkard and is she not

comfortable to let the children go there unsupervised. However, it is important for parents to bear in mind that this is about the best interest of the children and not about their feelings. Therefore, the defendant's access shall not be supervised.

**Disposition**

Given the circumstances of this case, the best interests of the children and the need to ensure that the children enjoy parental care from both parents, it is ordered as follows:

1. A decree of divorce be and is hereby granted.
2. The custody of the three minor children Asiel Michael Chikuvadze (born 10 December 2009), Michaela Eunice Chikuvadze (born 9 February 2013), and Mikyle Mukudzeiishe Chikuvadze (born 17 May 2020), be and is hereby awarded to the Plaintiff.
3. The defendant is to exercise unsupervised access rights over the children Asiel Michael Chikuvadze (born 10 December 2009), Michaela Eunice Chikuvadze (born 9 February 2013), and Mikyle Mukudzeiishe Chikuvadze (born 17 May 2020) for half of the school holidays every school holiday.
4. The Defendant is to pay maintenance in the sum of US$40.00 for each child, Asiel Michael Chikuvadze (born 10 December 2009), Michaela Eunice Chikuvadze (born 9 February 2013), and Mikyle Mukudzeiishe Chikuvadze (born 17 May 2020) respectively, every month until they each reach the age of majority or becomes self-supporting.
5. The Defendant is to further pay a third of the school fees for each child Asiel Michael Chikuvadze (born 10 December 2009), Michaela Eunice Chikuvadze (born 9 February 2013), and Mikyle Mukudzeiishe Chikuvadze (born 17 May 2020) respectively which school fees are to be paid ahead of every school term directly to the school that the respective child is attending.
6. There shall be no order as to costs.

**PHILLIPS J**:……

*Mataka Legal Practice* Plaintiff's Legal Practitioner